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Legislation - California expands paid sick days and boosts health worker wages

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SACRAMENTO >> California continues to burnish its reputation as a progressive state for health policy as Gov. Gavin Newsom signed bills expanding paid sick leave, adding bereavement leave for miscarriages, and boosting wages for health workers.

Newsom blessed a rare agreement between labor and the health industry to gradually phase in a nation-leading $25-an-hour statewide minimum wage for health workers. Estimates based on earlier versions of the bill found it would increase health care costs by billions of dollars each year and put pressure on the state's Medicaid program to raise reimbursement rates for long-term care to maintain patients' access to services. Other new laws aim to strengthen reproductive rights, as well as patient protections against errant doctors and pharmacists and surprise ambulance bills.

Still, in a possible sign of his national ambitions and experience as a businessperson and father, the Democrat tempered the bill-signing season by vetoing free condoms in schools and possession of psychedelic mushrooms.

He rejected decriminalizing such hallucinogens even as he supported their therapeutic potential as "an exciting frontier." He urged lawmakers to try again next year, this time adding specific treatment guidelines including recommended doses and protections for people with underlying psychoses. The bill's lead author, state Sen. Scott Wiener of San Francisco, had introduced the proposal amid successful decriminalization efforts in Colorado, Oregon, and some cities, saying veterans and others suffering from post-traumatic stress disorder and depression should not be penalized for seeking relief.

Newsom also shot down a $35 price cap for a 30-day supply of insulin in favor of his own price-cutting efforts, touting his administration's $50 million contract to begin sourcing its own insulin as early as next year. He argued this approach would avoid indirect price hikes for consumers that could come in the form of higher premiums to cover cheaper insulin.

The governor similarly showed caution in vetoing health and safety protections for domestic workers, arguing that "private households and families cannot be regulated in the exact same manner as traditional businesses."

The new laws will take effect in 2024 unless otherwise noted:

Sick days

California workers will be entitled to five paid sick days a year under SB 616, by state Sen. Lena Gonzalez, a Democrat from Long Beach. That's up from the three days required in California since 2014, but short of the seven days Gonzalez originally sought. Advocates say workers shouldn't have to show up sick, potentially spreading illness, because they can't afford to stay home. But the California Chamber of Commerce included the bill on its annual job killer list and said it would harm struggling small businesses.

Miscarriage and failed adoption leave

Parents who experience miscarriages, stillbirths, failed adoptions, or a breakdown in a surrogate pregnancy agreement will all be entitled to bereavement leave under SB 848. The bill, by state Sen. Susan Rubio, a Democrat from the San Gabriel Valley, will include unpaid reproductive loss leave under the state's existing law allowing up to five days of bereavement leave upon the death of a family member. She called reproductive losses "one of the most

traumatizing events a person can experience," noting that Illinois and Utah enacted similar laws in 2022. The bill applies to companies with five or more employees.

Abortion protections

A year after the U.S. Supreme Court overturned Roe v. Wade, Newsom signed nine abortion-related laws, adding to the strong protections for the procedure that California lawmakers adopted a year ago. Among them is SB 345, which increases protections for medical providers who live in California but mail abortion pills or gender-related medications to states where they are illegal. The bill's lead author, state Sen. Nancy Skinner, a Democrat from Berkeley, said in a statement that the laws strengthen California's position "as the national leader for reproductive freedom." Another bill, AB 1646, by Assembly member Stephanie Nguyen, a Democrat from Elk Grove, allows doctors from other states to receive abortion training in California without having to obtain a California medical license.

Behavioral health funding

Voters will get a direct say in March on Proposition 1, Newsom's key behavioral health initiative. Having signed a bipartisan package of bills, Newsom will ask voters to approve billions of dollars aimed at alleviating California's seemingly incorrigible homelessness crisis. He says that represents a paradigm shift in how California addresses the dilemma, but the proposition is opposed by those worried about expanding involuntary treatment and diverting funding from existing community-based programs. He also signed SB 43, expanding the state's conservatorship law to make it easier to force people into treatment for mental illness or addiction.

Medical licensing fees

The Medical Board of California will be required to follow new procedures while investigating complaints, while doctors will pay higher licensing fees to help fund those investigations. SB 815, by Sen. Richard Roth, a Riverside Democrat, mandates the new complaint procedures amid criticism of the board by patient advocates, who say bad doctors often escape sanction. It will gradually boost the license renewal fee to $1,255 every two years, up from $863 currently.

It also repeals AB 2098, passed last year, that said it is unprofessional conduct for doctors to spread misinformation or disinformation related to covid-19. The law was entangled in multiple lawsuits with conflicting rulings, including one by a federal judge who called it "unconstitutionally vague."

Pharmacy errors

Medication errors harm at least 1.5 million Americans annually and are among the most common medical errors, according to the National Academy of Medicine. In California, they are the top violation resulting in a citation. AB 1286, by Assembly member Matt Haney, a Democrat from San Francisco, imposes what he said is a first-in-the-nation requirement that retail pharmacies report every error. It also gives the pharmacist in charge at each store the authority to increase staffing and the duty to inform the store's management of dangerous conditions. The California State Board of Pharmacy can close a pharmacy if the conditions aren't improved.

Surprise ambulance bills

Patients who call for an ambulance can sometimes receive "surprise bills" topping $1,000, according to Health Access California. AB 716, by Assembly member Tasha Boerner, a Democrat from Encinitas, protects consumers from being charged out-of-network costs for ambulance services and uninsured Californians from being charged what she calls inflated ambulance rates. An analysis by the California Health Benefits Review Program said that would require health plans and insurers to pay more for out-of-network services.

Lifesaving medications

AB 1651, by Assembly member Kate Sanchez, a Republican from Rancho Santa Margarita, will require schools to have emergency epinephrine auto-injectors for use by school nurses or trained volunteers to treat life-threatening anaphylactic reactions. More than 15% of children with food allergies have had a reaction at school, according to the Latino Food Allergy Network, which sought the bill.

Food safety

By 2027, California will become the first U.S. state to ban four chemicals widely used in processed food and drinks, following the lead of the European Union and other nations. AB 418, by Democratic Assembly members Jesse Gabriel and Buffy Wicks, initially drew headlines because it would have banned titanium dioxide, which is used in Skittles, but that chemical was dropped from the bill. Opponents said the U.S. and California already have sufficient food safety and food labeling requirements. Newsom and the bill's supporters chided the Food and Drug Administration for failing to take action.

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